Republic of the Philippines
ENERGY REGULATORY COMMISSION
San Miguel Avenue, Pasig City

ENERGY REGULATORY COMMISSION
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RESOLUTION NO. 03 , Series of 2020

A RESOLUTION EXTENDING THE DEADLINE FOR FILING APPLICATIONS, PLEADINGS AND OTHER DOCUMENTS, ALLOWING THE FILING THEREOF THROUGH ELECTRONIC MEANS, AND OTHER MATTERS

WHEREAS, on 08 March 2020, President Rodrigo Roa Duterte signed Proclamation No. 922 declaring a State of Public Health Emergency throughout the Philippines upon the recommendation of the Department of Health (DOH) following the confirmed local transmission of the Coronavirus Disease 2019 (COVID-19). Said State of Public Health Emergency shall remain in force and effect until lifted or withdrawn by the President[1];

WHEREAS, due to the rapid increase of cases of infection in the country, the President, on 16 March 2020, signed Proclamation No. 929 declaring a State of Calamity throughout the Philippines <u>for a period of six (6) months (from issuance until September 2020), unless lifted or extended as circumstances may warrant</u>, and further providing for the imposition of "Enhanced Community Quarantine (ECQ)" over the entire Luzon[2];

WHEREAS, pursuant to said Proclamations, the Energy Regulatory Commission (ERC) has adopted a Work-from-Home arrangement. Said Work-from-Home arrangement shall continue until 15 May 2020, unless further extended by the Commission depending on the prevailing circumstances;

WHEREAS, the Commission has issued public advisories, the latest of which is the advisory issued on 15 April 2020, extending the period for the submission of all pleadings and other documents which fall due on or before 31 May 2020. The relevant part of the 15 April 2020 advisory reads:

x x x

> *2. All applications, pleadings, compliances <u>falling due on or before 31 May 2020</u> may be submitted sixty (60) days from 30 April 2020;*[3]

x x x

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[1] Section 5 of Proclamation No. 922, Series of 2020.

[2] Sections 1 and 2 of Proclamation No. 929, Series of 2020; underscoring supplied.

[3] Underscoring supplied.

WHEREAS, on 21 April 2020, the President signed Administrative Order No. 30, Series of 2020[4], directing all government offices to formulate and issue guidelines on the interruption of periods for the filing of documents and cancellation of proceedings before their respective offices. Section 1 thereof reads:

> ***SECTION 1. Directive to Issue Guidelines.*** *Any law to the contrary notwithstanding, and in order to ease the social and economic burden of community quarantine, all heads of departments, agencies, offices, and instrumentalities of the government, including all government-owned or –controlled corporations (GOCCs), government financial institutions (GFIs), state universities and colleges (SUCs), and LGUs, are hereby directed, while the heads of other branches of government and independent constitutional bodies are hereby enjoined, to immediately formulate and issues rules or guidelines on the following, to be applied in areas under community quarantine or to individuals coming from such areas, as the case may be:*
>
> *a) <u>Interruption of reglementary periods for the commencement of actions and claims; the filing of pleadings, appearances, motions, notices, and all other papers; and the rendition of judgments, resolutions, and orders for the duration of the community quarantine;</u>*
> *b) <u>Cancellation of proceedings and the rescheduling thereof after the lifting of community quarantine;</u>*
> *c) <u>Acceptable justifications for the failure of litigants or their counsel, as well as claimants, to comply with reglementary periods or to appear at legal proceedings, if they are coming from jurisdictions where quarantine protocols restrict their movements;</u>*
> *d) Suspension of deadlines for the payment of monetary obligations and/or the submission of documents, for the duration of community quarantine; and*
> *e) Movement of timelines for the grant of any benefit, to allow the release thereof to individuals during community quarantine.*[5]
>
> *Notwithstanding sub-paragraphs (a), (b), and (c) above, reglementary periods and proceedings for urgent cases which are necessary to enable the government to act expeditiously on matters affecting the current public health emergency shall not be interrupted or cancelled.*
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> *The foregoing directive shall apply only in relation to areas where community quarantine was declared in accordance with the rules issued by the Inter-Agency Task Force*

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[4] Entitled "DIRECTING ALL GOVERNMENT OFFICES TO FORMULATE AND ISSUE GUIDELINES ON THE INTERRUPTION OF PERIODS FOR THE FILING OF DOCUMENTS, PAYMENT OF TAXES, CHARGES AND OTHER FEES, AND CANCELLATION OF PROCEEDINGS BEFORE THEIR RESPECTIVE OFFICES, AND ON THE MOVEMENT OF TIMELINES FOR THE RELEASE OF BENEFITS"

[5] Underscoring supplied.

for the Management of Emerging Infectious Diseases (IATF) or the Office of the President, until the date that the same is lifted by the same office that made the declaration, provided the lifting be also in accordance with the rules of the IATF or the Office of the President.

x x x

NOW, THEREFORE, BE IT RESOLVED, AS IT IS HEREBY RESOLVED, that the Commission hereby issues the following guidelines:

1. The filing or submission of all applications, pleadings and other documents that fall due on or before 31 May 2020 shall remain extended, as provided in the 15 April 2020 advisory of the Commission. Parties may file said applications, pleadings and other documents **on or before 30 June 2020**.

2. Notwithstanding the extension provided above, parties may choose to file, through electronic means, all applications, pleadings, and other documents, except those which need to undergo pre-filing conference.

3. Applications, pleadings, and other documents which are allowed to be electronically filed pursuant to these guidelines must be submitted in Microsoft Word and PDF formats by electronic mail (e-mail) to the Office of the General Counsel and Secretariat – Central Records Division (OGCS-CRD) through the following e-mail addresses:

   a) records@erc.gov.ph; and
   b) records.erc.gov.ph@gmail.com

   The e-mail shall use the following format and contain the following details:

   To: records@erc.gov.ph; records.erc.gov.ph@gmail.com

   From: (email address of authorized representative) ***NOTE: For regulated entities, the email address to be used must be that of the Regulatory Compliance Officer (RCO) or President/General Manager. For pending cases, email of counsel of record shall also be allowed.***

   Subject: ELECTRONIC FILING – ERC Case No. 2020-123 RC

   Body of email:

   ERC Case No. 2020-123 RC
   Case Title: *(insert complete title)*
   Name of Filing Party: *(insert complete name of party and authorized representative with corresponding position)*
   Contact Numbers: *(02) 8333-3333 (landline), 0999-9999999 (cp)*
   Other e-mail address/es, if any: *(insert authorized representative's other e-mail address/es)*

Title of Attached Documents:
1. Motion for Clarification
2. Annex A - (*name of document*)
3. Annex B - (*name of document*)

4. The filenames of the soft copies of the applications, pleadings, and other documents shall be the same as the document title (i.e. Motion for Reconsideration, Motion for Clarification). The same rule shall be applied for the annexes, if any (i.e. Annex A).

5. Said applications, pleadings, and other documents must bear the electronic/digital signature/s of the counsel/s of record and/or party/ies concerned, and shall be accompanied by a declaration that the application/pleading/document and annexes submitted electronically are complete and true copies of the printed document/s and annex/es that will be subsequently filed with the Commission by registered or ordinary mail/private courier. The format of the declaration shall be as follows:

I, ___(name and position)_____, hereby declare that the document/s (and annexes thereon hereto submitted electronically in accordance with Resolution No. _____, series of 2020, is/are complete and true copy/ies of the document/s (and annexes) filed with the Commission.

Signature
Printed Name
Position
Date

SUBSCRIBED AND SWORN TO before me on this __ day of ___ , 2020, affiant exhibiting his/her competent evidence of identity, to wit:
_____

Person Administering Oath

Doc. No. __
Page No. __
Book No. __
Series of 2020

Where said declaration cannot be made under oath during the community quarantine, the email shall still include a PDF copy thereof signed by the counsel of record/party filing the document.

The duly notarized declaration shall be submitted together with the printed copies of the applications/pleadings/other documents.

6. Whenever applicable, the party filing the application, pleading, or other document must still comply with the required proof of service to the other party as provided under Rule 10 of the ERC Rules of Practice and Procedure (RPP).

7. In all cases, the printed copies of the applications, pleadings, and other documents submitted electronically via email, pursuant to these guidelines, should be submitted by registered or ordinary mail/private courier immediately after the community quarantine shall have been lifted.

8. Upon receipt of the email containing the application, pleading, or other document submitted through these Guidelines, the Commission, through its OGCS-CRD, shall issue an acknowledgment letter/email indicating receipt by the Commission of said electronic filing.

9. Notwithstanding the constraints imposed by the COVID-19 pandemic, the Commission shall continue to act on all applications and/or cases pending with the Commission. It shall exert all possible efforts to resolve said applications and/or cases and render a decision/order/appropriate issuance during the community quarantine, which shall be furnished to the parties and other stakeholders through electronic means. Hard copies of said Commission issuances shall be personally delivered or mailed after the community quarantine is lifted.

10. For all applications, pleadings and other documents received by the Commission through electronic means pursuant to these guidelines, the Commission shall issue the order, decision, or other appropriate issuance reflecting such action, also electronically, using the email address provided by the filing party, who shall immediately acknowledge receipt thereof. Any party who voluntarily avails of electronic filing pursuant to these guidelines acknowledges service through email of such appropriate issuance as a valid and effective form of service.

11. The Commission, when circumstances warrant, may suspend action on any application, pleading, or other document until actual receipt of the printed document/s filed and after determination of compliance by said application, pleading, or other document to the RPP and other laws, rules and regulations.

12. All hearings previously scheduled within the community quarantine are hereby suspended. The Commission shall issue the appropriate notices rescheduling said hearings. Parties who may not be available to attend the hearing, as rescheduled due to quarantine restrictions in their areas, may file the appropriate motion to the Commission pursuant to these guidelines.

13. The Commission may also adopt guidelines on the conduct of virtual hearings during the community quarantine and even after the lifting of said community quarantine in order to reduce physical interactions of the parties and the ERC staff with the public; thus, reduce the risk of spreading the COVID-19 virus.

14. The Commission may subsequently adopt electronic filing as a regular mode of accepting applications, pleadings and other documents, as well as the conduct of virtual hearings, by

incorporating the same in its existing RPP which is currently undergoing revision.

Let copies of this Resolution be furnished the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR) and all industry stakeholders as well as published in the ERC website and such other online platform available to the Commission under the circumstances.

Pasig City, 05 May 2020.

ERC
Office of the Chairperson
AVSTD-2020-05-570-0001

AGNES VST DEVANADERA
Chairperson

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